

The site against the law, as of 19 September 2026

Practical Privacy · Practical AI Act Advice · the Assessment Suite · the GDPR Readiness Model. Companion to the study pack.

Summary

The site's content was checked claim by claim against the GDPR, the AI Act as amended, EDPB and Commission guidance, court decisions, and the national rules it cites, as they stand on 19 September 2026. The short version at the time of the check: the privacy reference and the assessment tools were in good shape, the AI Act reference was out of date in one important respect, and the copyright section needed a rewrite. The eight fix-now items and the AI Risk tool fix were applied to the site files on 19 September 2026 and are marked done below; the add-later items and the open items are untouched.

AREA	VERDICT	WHAT DRIVES IT
Practical Privacy (18 topics)	Good; two fixes applied 19 Sept 2026	Article 9 wording, New Zealand response time, the missing soft opt-in, and a handful of new cases and guidelines worth a sentence each.
Practical AI Act Advice (13 sections)	Updated 19 Sept 2026	Regulation (EU) 2026/1744 (the AI Omnibus) entered into force on 27 July 2026 and moved the high-risk dates, softened Article 4, added two prohibitions and changed FRIA and registration mechanics. Sections 1, 2, 3, 5, 7, 8 and 12 all state the pre-Omnibus position.
Copyright & Generative AI	Rewritten 19 Sept 2026	Three US merits rulings, a USD 1.5bn settlement, the UK dropping its opt-out proposal, two German judgments, a UK Getty judgment and a pending CJEU case have all happened since. The litigation count is off by a factor of four.

AREA	VERDICT	WHAT DRIVES IT
Assessment Suite (6 tools)	Good; fix applied 19 Sept 2026, four open items	Scoring models match their sources. The AI Risk tool should reflect the new dates and prohibitions. The incident tool's ENISA factor, its AEPD cross-check and alignment with the EDPB's new breach template are recorded as open items for a future revision.
GDPR Readiness (71 activities)	Good	Nothing in the Article mapping has changed. The GDPR Digital Omnibus is still a proposal, so the model should not be altered to anticipate it.

Everything below is grouped by what to do about it: fix now, add when convenient, open items for a future revision, confirmed as correct, and watch. Each finding carries a priority (High, Medium, Low), judged by how far a reader relying on the page today would be misled, and a source number that resolves in the source list at the end. Two further sections sweep every document on the EDPB public consultations page (47) and on the full EDPB documents listing (532) and rate each for relevance to the site.

All changes, rated high to low

High: a reader relying on the page today would act on something that is no longer the law. Medium: the page is imprecise or silent on something that changes a decision at the margin. Low: a detail, a date or a citation.

PRIORITY	CHANGE	GROUP	STATUS
HIGH	AI Act timeline: the Omnibus changed the dates	Fix now	Done 19 Sept 2026
HIGH	Two new prohibited practices	Fix now	Done 19 Sept 2026
HIGH	Article 4 AI literacy was softened	Fix now	Done 19 Sept 2026
HIGH	The copyright section needs rewriting, not patching	Fix now	Done 19 Sept 2026
MEDIUM	FRISA scope is stated too loosely	Fix now	Done 19 Sept 2026
MEDIUM	Registration and the EU database	Fix now	Done 19 Sept 2026
MEDIUM	Article 9 wording	Fix now	Done 19 Sept 2026
MEDIUM	The ePrivacy soft opt-in is missing from the marketing topic	Add when convenient	Open
MEDIUM	EDPB Guidelines 02/2024 on Article 48: requests from non-EU authorities	Add when convenient	Open
MEDIUM	GDPR Digital Omnibus: describe it as a proposal, change nothing in the tools	Add when convenient	Open
MEDIUM	EDPB material on AI that the AI sections do not cite	Add when convenient	Open
MEDIUM	Incident tool: ENISA malicious intent factor	Open items	Open
MEDIUM	Incident tool: AEPD cross-check source	Open items	Open
MEDIUM	Incident tool: align the intake with the EDPB common breach notification template	Open items	Open
LOW	New Zealand response time is 20 working days, not about 30 days	Fix now	Done 19 Sept 2026
LOW	Three older EDPB guidelines the website and marketing topics could cite	Add when convenient	Open
LOW	Case law since mid-2025 worth one line each	Add when convenient	Open
LOW	Australia and the United Kingdom: name the cases and dates	Add when convenient	Open
LOW	Breach notification windows: the 'hours' framing needs its examples	Add when convenient	Open
LOW	AI Act governance detail now available	Add when convenient	Open

PRIORITY	CHANGE	GROUP	STATUS
LOW	GDPR Procedural Regulation	Add when convenient	Open
LOW	Full DPIA: alignment with the EDPB harmonised DPIA template	Open items	Open

Fix now

Statements that are now wrong or materially out of date. Ordered by consequence.

HIGH **DONE** AI Act timeline: the Omnibus changed the dates

Practical AI Act Advice, sections 1, 3, 5, 7 and 8; AI Risk Assessment intro

Regulation (EU) 2026/1744, the Digital Omnibus on AI, was adopted on 8 July 2026, published in the Official Journal on 24 July and entered into force on 27 July 2026 [1] [2]. It rewrites Article 113 with fixed dates rather than a standards-linked trigger. The site's timeline table still shows the original calendar.

OBLIGATION	SITE SAYS	NOW
Annex III high-risk systems (Chapter III Sections 2 and 3, plus Arts 26, 27, 49, 72, 73)	2 August 2026	2 December 2027
Annex I product-embedded high-risk systems	2 August 2027	2 August 2028
Article 50 transparency	2 August 2026	2 August 2026 as scheduled; grace period only for Art 50(2) machine-readable marking on generative systems already on the market, until 2 December 2026 [3]
Penalties, governance, national authorities, Commission GPAI enforcement powers	2 August 2026	2 August 2026, unchanged
National regulatory sandboxes	2 August 2026	2 August 2027

The phrase "the majority of the Act's provisions become applicable" on 2 August 2026 is no longer accurate. What applied on that date was transparency, penalties, governance and enforcement powers. The whole high-risk regime, including FRIA, registration, deployer duties and serious incident reporting for Annex III systems, now starts on 2 December 2027.

Done 19 September 2026. Section 8 timeline table rewritten with the Regulation (EU) 2026/1744 dates (27 July 2026 entry into force, 2 August 2026 transparency and penalties, 2 December 2026 new prohibitions and end of the Article 50(2) grace period, 2 August 2027 legacy GPAI and sandboxes, 2 December 2027 Annex III, 2 August 2028 Annex I) and a paragraph explaining what the Omnibus changed; section 8 practical steps, section 6 GPAI timing, section 3 registration and section 7 sequence updated to the new dates.

HIGH**DONE****Two new prohibited practices**

Practical AI Act Advice, section 2

Article 5(1) now lists ten practices, not eight. The Omnibus added point (ba), AI systems generating non-consensual sexually explicit or intimate imagery, and point (bb), generation of child sexual abuse material, both applicable from 2 December 2026, with a provider test based on intended purpose or reasonably foreseeable outcome without adequate safeguards, and a deployer intent test in a new Article 5(1a) [1][2]. The Commission's February 2025 guidelines on prohibited practices have not been revised to cover them yet. The section's eight-item list, its screening questionnaire and the review card in the study pack all need the two additions.

Done 19 September 2026. Section 2 now lists ten practices, with items 9 and 10 for Article 5(1)(ba) and (bb), the provider and deployer tests in Article 5(1a), the 2 December 2026 date and the note that the Commission guidelines predate them; the screening questionnaire gained a question on intimate-imagery generation. Study pack takeaways, self-test and review card updated to match.

HIGH**DONE****Article 4 AI literacy was softened**

Practical AI Act Advice, section 12; review card

The site says Article 4 requires "a sufficient level of AI literacy". The amended Article 4(1) requires providers and deployers to "take measures to support the development of AI literacy" of their staff and others operating AI on their behalf. The Commission's Q&A, updated 27 July 2026, states explicitly that no specific or sufficient level is mandated, that enforcement sits with national market surveillance authorities from 2 August 2026, and that the separate obligation to train people assigned to human oversight of high-risk systems is unchanged [4]. The four-layer training structure the section recommends remains sound practice; the legal framing around it needs the new wording, and the argument that "auditors will look for evidence that training differs by audience" now rests on good practice and the oversight duty rather than on Article 4 itself.

Done 19 September 2026. Section 12 opening paragraph rewritten to the amended wording (measures to support the development of AI literacy, no sufficient level mandated, enforcement by national market surveillance authorities from 2 August 2026, oversight competence duty unchanged); practical steps reframed accordingly. Study pack updated.

MEDIUM

DONE

FRIA scope is stated too loosely

Practical AI Act Advice, section 5

The site says the fundamental rights impact assessment applies to "deployers using AI for credit or insurance assessment". Article 27 applies to deployers that are bodies governed by public law or private entities providing public services, and to deployers of Annex III point 5(b) and 5(c) systems. Point 5(b) is creditworthiness evaluation or credit scoring of natural persons, excluding financial fraud detection. Point 5(c) is risk assessment and pricing of natural persons for life and health insurance only, not motor or property [5][6]. The Omnibus also lets a FRIA cross-reference an existing DPIA (Art 27(4)) and tasks the AI Office with a template questionnaire and automated tool (Art 27(5)) [1]. The obligation now applies from 2 December 2027.

Done 19 September 2026. Section 5 now states the exact scope (bodies governed by public law, private providers of public services, creditworthiness or credit scoring of natural persons excluding fraud detection, life and health insurance risk assessment and pricing), the DPIA cross-reference and AI Office template under Article 27(4) and (5), and the 2 December 2027 date; the practical steps and the bank worked example corrected. Study pack updated.

MEDIUM

DONE

Registration and the EU database

Practical AI Act Advice, sections 3, 4 and 7

The Omnibus keeps registration but simplifies Annex VIII, and restores in proportionate form the registration of Annex III systems self-assessed as not high-risk under Article 6(3) [1][2]. The EU database itself was reported as not yet operational at the end of July 2026, with a launch reported for the third quarter of 2027; that last date rests on a single secondary report and should be checked before it is quoted [7]. "Build registration into your launch checklist" remains right; the timing language around it should say the obligation bites on 2 December 2027 and the database is not yet open.

Done 19 September 2026. Section 3 registration bullet and section 7 sequence now say the obligation applies from 2 December 2027, that simplified registration survives for carve-out systems, and that the database was not yet open in September 2026.

MEDIUM

DONE

Article 9 wording

Practical Privacy, topic 9; Privacy Assessment special-category options; review card

Article 9(1) reads: racial or ethnic origin, political opinions, **religious or philosophical beliefs**, trade union membership, genetic data, **biometric data for the purpose of uniquely identifying a natural person**, data concerning health, and data concerning sex life or sexual orientation [8]. The site omits "philosophical" everywhere it lists the categories, and describes biometric data as special category without the "uniquely identifying" qualifier. That qualifier matters in practice: a photograph is not special category data until it is processed to identify someone, which is exactly the line the biometrics passage in topic 9 is drawing.

Done 19 September 2026. Topic 9 of Practical Privacy now reads religious or philosophical beliefs, genetic data, and biometric data processed to uniquely identify a person. The special-category option label in assessment.js (used by the Privacy Assessment and the incident tool's AEPD cross-check, both occurrences kept identical) now reads the same way; note that assessments saved before the change will not re-match that option on reload. Study pack review card and takeaways updated.

LOW

DONE

New Zealand response time is 20 working days, not about 30 days

Practical Privacy, topic 8

Section 44 of the Privacy Act 2020 requires a decision on an access request as soon as reasonably practicable and in any case within 20 working days, extendable under section 45 for large or complex requests with written notice inside the original period. Public sector agencies may not charge for access without the Commissioner's authorisation; private sector agencies may charge a reasonable fee [9][10]. "Around 30 days" overstates it by roughly a week and misses the working-day basis. Suggested wording: "20 working days, about four weeks, extendable in limited cases with notice."

Done 19 September 2026. Topic 8 now says 20 working days (about four weeks) under the Privacy Act 2020, extendable in limited cases with written notice, private sector may charge a reasonable fee, public sector may not. Study pack updated.

HIGH

DONE

The copyright section needs rewriting, not patching

Practical AI Act Advice, section 13

Every jurisdiction row and the litigation paragraph have moved since the section was written.

- **United States.** Three district courts have now ruled on the merits. *Bartz v Anthropic* (23 June 2025) held training on lawfully acquired books to be fair use and the pirated library not to be; the USD 1.5bn class settlement covering 482,460 works was finally approved on 21 July 2026, with payments expected from around the end of 2026 [11][12]. *Kadrey v Meta* (25 June 2025) found fair use on narrow facts, with the distribution claim continuing to 2027 [13]. *Thomson Reuters v Ross* found no fair use; the Third Circuit heard argument on 11 June 2026 and its ruling will be the first US appellate decision on AI training [14]. The *New York Times* case is now the consolidated OpenAI MDL in the Southern District of New York, in summary judgment briefing since 4 September 2026 [15]. The lawful acquisition versus piracy distinction is now the practical risk driver, and output-side claims (lyrics, characters, verbatim articles) are the live battleground.
- **United Kingdom.** The opt-out proposal from the December 2024 consultation was not taken forward. The government's report and impact assessment under the Data (Use and Access) Act, published 18 March 2026, assessed four options and endorsed none; legislation is described as unlikely to be imminent [16]. *Getty v Stability AI* was decided at first instance on 4 November 2025: secondary infringement failed because model weights do not store or reproduce the works, with a limited trade mark win on historic models; Getty has permission to appeal the secondary infringement point [17].
- **Germany.** The Munich Regional Court held in *GEMA v OpenAI* (11 November 2025) that memorisation of lyrics in model parameters is reproduction outside the TDM exception, and repeated the result in *GEMA v Suno* (31 July 2026). Both are under appeal [18][19].
- **European Union.** The CJEU Grand Chamber heard *Like Company v Google* (C-250/25) on 10 March 2026, the first reference on training and chatbot outputs; the Advocate General's opinion was scheduled for 3 September 2026 and could not be confirmed as delivered [20]. The GPAI Code of Practice copyright chapter (10 July 2025) and the training-data summary template (24 July 2025) give the transparency obligation concrete shape, and the Commission's fining powers over GPAI providers have applied since 2 August 2026 [21][22]. Parliament adopted the Voss resolution on 10 March 2026 and the Commission ran two copyright consultations in spring 2026 plus a feasibility study on an EU opt-out registry [23].
- **Japan and China.** Japan's Article 30-4 is unchanged but a non-binding Cabinet Office code on IP and transparency was consulted in early 2026 [24]. China's labelling measures took effect on 1 September 2025 and the Supreme People's Court issued opinions on 7 September 2026 setting fault-based platform liability while leaving the legality of training open [25].
- **Litigation count.** "Somewhere in the high thirties" is stale. The most cited US tracker counted 142 suits on 15 September 2026 [26].

- **Output copyrightability.** The position is now firmer: certiorari in *Thaler v Perlmutter* was denied on 2 March 2026, leaving the human-authorship holding in place [27].

Done 19 September 2026. Section 13 rewritten: lifecycle exposure points kept with the acquisition-versus-use distinction and output reproduction as the live battleground; Thaler certiorari denial added; jurisdiction table rebuilt for the US (Bartz, Kadrey, Ross, the OpenAI MDL), the EU (template, Code of Practice copyright chapter, fining powers, Like Company, Parliament resolution, opt-out registry study), Germany (GEMA v OpenAI and GEMA v Suno), the UK (March 2026 report, Getty judgment and appeal), Japan and China; litigation count updated to 142; six practical steps including memorisation testing and output indemnity. Study pack takeaways updated.

Add when convenient

Nothing here is wrong on the page. These are developments the page does not yet mention and a reader in late 2026 would expect to see.

MEDIUM

The ePrivacy soft opt-in is missing from the marketing topic

Practical Privacy, topics 10 and 18

Topic 18 says marketing needs opt-in consent. Under Article 13(2) of the ePrivacy Directive an existing customer may be emailed about similar products on an opt-out basis where the contact details were obtained in the context of a sale. The CJEU confirmed on 13 November 2025 (C-654/23) that free accounts in a freemium model count as "in connection with a sale" and that no separate GDPR Article 6 basis is needed where the soft opt-in applies [28]. A company-agnostic guide should name the exception, its four conditions, and that many non-EU regimes do not have it.

MEDIUM

EDPB Guidelines 02/2024 on Article 48: requests from non-EU authorities

Practical Privacy, topic 12

Topic 12 covers external requests for data but does not mention the EDPB's Guidelines 02/2024 on Article 48 GDPR, consulted December 2024 to January 2025 and adopted in final form in June 2025 [77]. They state the position a company-agnostic guide needs: a judgment or administrative decision of a third-country court or authority is not by itself a lawful basis for transfer; the request has to be recognised through an international agreement such as a mutual legal assistance treaty, and the transfer still needs a Chapter V mechanism and an Article 6 basis. For a global organisation this is the most common legal trap in the external-request scenario and the topic should carry a short paragraph on it.

LOW

Three older EDPB guidelines the website and marketing topics could cite

Practical Privacy, topics 10, 15 and 18

- **Guidelines 03/2022 on deceptive design patterns** (final 02/2023): the reference point for topic 15's cookie banner advice and topic 10's "never rely on pre-ticked boxes" [78].
- **Recommendations 2/2025 on mandatory user accounts in e-commerce** (consulted December 2025 to February 2026): forcing account creation to buy is not necessary for the contract; a guest checkout must be available. Fits topic 15's "excessive form fields" red flag [79].
- **Guidelines 08/2020 on targeting of social media users**: joint controllership between advertiser and platform for audience targeting. Fits topic 18's profiling paragraph [80].

MEDIUM**GDPR Digital Omnibus: describe it as a proposal, change nothing in the tools**

Practical Privacy overall; Privacy Assessment; Incident tool; Readiness model

The Commission's proposal of 19 November 2025 to amend the GDPR is still in first reading. There is no Council general approach and no Parliament position; the joint ITRE-LIBE draft report came out on 22 June 2026 with over 1,000 amendments tabled, and a Parliament position is not expected before early 2027 [29]. The EDPB-EDPS Joint Opinion 2/2026 of 11 February 2026 opposes the personal data definition change and the Article 22 restructuring, supports browser signals and a higher breach threshold, and flags the conflict between a 96-hour deadline and the NIS2 24-hour early warning [30]. So: 72 hours, the current Article 4(1) definition, ePrivacy Article 5(3) for cookies and the 250-employee RoPA exemption all still apply. The incident tool's 72-hour arithmetic and the readiness model's Article 30 activity should not be touched. A short "what may change" box would help readers who have seen headlines.

MEDIUM**EDPB material on AI that the AI sections do not cite**

Practical Privacy topic 13; Practical AI Act Advice section 10; AI Risk Assessment

- Opinion 28/2024 on AI models (17 December 2024): model anonymity is assessed case by case and must make extraction or regurgitation "very unlikely"; legitimate interest can support development and deployment via the three-step test; three scenarios for models trained on unlawfully processed data [31].
- Guidelines 02/2026 on anonymisation, adopted 7 July 2026, consultation to 30 October 2026: three criteria (singling out, linkability, inference) and two approaches, contextual and simplified [32].
- Guidelines 03/2026 on web scraping for generative AI, adopted July 2026, consultation to 30 October 2026 [33].
- The EDPB's harmonised DPIA template and explainer, adopted 14 April 2026, non-mandatory [34]. Worth a sentence in the Full DPIA intro: the tool's structure is compatible with it.
- The 2026-2027 work programme lists joint AI Act and GDPR guidelines, generative AI, data scraping, consent-or-pay and children's data [35].

LOW Case law since mid-2025 worth one line each

Practical Privacy, topics 8, 11, 13, 15, 17

- *EDPS v SRB* (C-413/23 P, 4 September 2025): identifiability is assessed from the recipient's perspective; pseudonymised data can be non-personal for a recipient while remaining personal for the controller [36]. Relevant to topic 17's "aggregated, masked or anonymised" advice.
- *Brillen Rottler* (C-526/24, 19 March 2026): even a first access request can be refused as excessive under Article 12(5) where objective circumstances show it is aimed at manufacturing a damages claim [37]. Topic 8 currently implies all requests must be processed; the exception is narrow but real.
- *Dun & Bradstreet Austria* (C-203/22, 27 February 2025): the Article 15(1)(h) explanation must describe the procedure and principles actually applied, intelligibly enough to contest the decision; disclosing the algorithm is not required; trade secrets are balanced by the authority or court [38]. Relevant to topic 13 and the Privacy Assessment's automated decision-making factor.
- EU-US Data Privacy Framework: the General Court dismissed *Latombe* on 3 September 2025; an appeal was lodged on 31 October 2025 and is pending. The framework remains valid. The Privacy Assessment's factor text ("keep a fallback mechanism in view") is exactly right and could cite the appeal [39].

LOW Australia and the United Kingdom: name the cases and dates

Practical Privacy, topics 8, 13 and 18

- The apparel retailer example is *ACMA v Lululemon Athletica Australia*, 11 March 2026: AUD 702,900 for more than 370,000 emails between 1 December 2024 and 5 January 2025 that mischaracterised delivery and order confirmations carrying marketing content. ACMA called it the fifth such action in 18 months [40]. Naming it makes the example checkable. Larger recent penalties for context: Commonwealth Bank AUD 7.5m (October 2024), TAB AUD 4m (April 2025) and AUD 2.7m (July 2026) [41].
- Australia's ADM transparency obligations in privacy policies (APP 1.7 to 1.9) commence 10 December 2026, and the Children's Online Privacy Code must be registered by the same date [42]. The tranche 2 exposure draft, the Privacy Amendment (Personal Data Protection) Bill 2026, closed for consultation on 18 September 2026 and proposes a fair-and-reasonable test, a 72-hour breach notification and a defined consent standard [43]. Topic 8's "around 30 calendar days" for Australia is confirmed by OAIC guidance [44].
- The UK Data (Use and Access) Act 2025 core provisions commenced 5 February 2026: DSAR stop-the-clock and proportionate search, recognised legitimate interests, a rewritten Article 22, relaxed analytics cookie consent, PECR fines aligned to UK GDPR levels. The complaints duty commenced 19 June 2026 and the ICO becomes the Information Commission on 30 September 2026 [45]. Topic 8's response windows table could carry a UK line.

Low Breach notification windows: the 'hours' framing needs its examples

Practical Privacy, topic 16; Incident tool

The GDPR window is 72 hours from awareness, and the EDPB defines awareness as a reasonable degree of certainty that a security incident has compromised personal data, allowing a short investigation first [46]. "Commonly measured in hours" is fair but reads as if GDPR itself were shorter. The regimes that are: NIS2 early warning within 24 hours, DORA initial notification within 4 hours of classifying an incident as major and no later than 24 hours from awareness [47]. Australia's scheme is "as soon as practicable" with a 30-day assessment window; New Zealand's is "as soon as practicable" with 72 hours as the Commissioner's stated expectation [48]. The incident tool's phrasing "from the moment the breach qualified" matches the EDPB definition and can stay.

Low AI Act governance detail now available

Practical AI Act Advice, sections 7 and 8

- AI Act Service Desk and Single Information Platform launched 8 October 2025, with a compliance checker and the Act explorer [49].
- Scientific Panel (60 members) and Advisory Forum appointed 1 June 2026 [50].
- Only nine Member States had fully designated their authorities by mid-June 2026. Spain: AESIA. Germany: Bundesnetzagentur, with the KI-MIG in force 29 July 2026. Italy: Law 132/2025, ACN as market surveillance authority. France: DGCCRF co-ordinating. Ireland: fifteen existing bodies. Netherlands: ten sectoral authorities with RDI as single point of contact [51][52].
- Article 6(5) high-risk classification guidelines: the 2 February 2026 statutory deadline was missed; a draft was published 19 May 2026 and no final version was found [53].
- Article 50: final Commission guidelines on 20 July 2026 and a Code of Practice on AI-generated content assessed as adequate the same month, with roughly 190 signatories by 31 July 2026 [54].
- Harmonised standards: the standardisation request deadline moved to 28 February 2027; EN 18286 on quality management was at formal vote in mid-2026 and the first batch is targeted for late 2026 [55]. The section's advice to "stage-gate against the standards" should say they are not yet cited in the Official Journal.
- AI Office competence now covers systems built on GPAI models from the same provider and systems embedded in very large online platforms and search engines, with carve-outs [1].
- Small mid-caps (up to 750 employees) now share the SME simplifications [2].

LOW **GDPR Procedural Regulation**

Practical Privacy, topic 14

Regulation (EU) 2025/2518 on cross-border enforcement procedure was published on 12 December 2025 and applies from 2 April 2027 [56]. Topic 14 could note that complaint handling across borders will follow harmonised deadlines from then.

Open items for a future revision

Recorded, not scheduled. Each depends on a source being found or a document being finalised, and the incident tool items should be done together.

MEDIUM Incident tool: ENISA malicious intent factor

assessment.js, INCIDENT_STEPS and incidentResult

The published ENISA methodology's circumstances-of-breach term includes a malicious intent adjustment of +0.5 alongside the confidentiality, integrity and availability components, so CB can reach 2.0 where the tool caps it at 1.5 [66]. Recorded as an open item rather than a fix: adding it changes the band for some breaches and should be done together with the two items below, so the incident tool is revised once.

MEDIUM Incident tool: AEPD cross-check source

assessment.js, aepdResult

The volume by type by impact score with a 20/40 threshold could not be matched to a current AEPD publication. The AEPD's June 2021 breach guide uses a probability by severity matrix, and its Asesora Brecha and Comunica-Brecha tools are question-based with no numeric formula [75][76]. If the method derives from the 2018 edition of the AEPD guide, the tool should say so and link it; otherwise the cross-check should be replaced with the current AEPD matrix or removed. Open until the source is found.

MEDIUM Incident tool: align the intake with the EDPB common breach notification template

assessment.js, INCIDENT_STEPS steps 1 to 4 and 10 to 11

The EDPB consulted on a common template for personal data breach notification from 10 June to 5 August 2026 [81][82]. It uses confidentiality, integrity and availability classifications, predefined incident types (ransomware, hacking, malware, phishing, exfiltration, incorrect access permissions), predefined breached data categories, predefined measures in place (pseudonymisation, encryption, logging), a consequence assessment without numeric scoring, cross-border fields and phased reporting (complete, incomplete, withdrawn). Adoption by supervisory authorities is voluntary but expected to be wide. Once the final version is published, the incident tool's intake steps could mirror its field names so an assessment can be pasted into a notification. Not yet actionable: the final text is pending.

LOW Full DPIA: alignment with the EDPB harmonised DPIA template

assessment.js, DPIA_STEPS

The EDPB's non-mandatory DPIA template and explainer were consulted from 14 April to 9 June 2026 [34]. The tool's eleven steps cover the same ground in a different order. Worth a field-by-field comparison when the final version is published, so an export from the tool can be dropped into the template.

EDPB public consultations: full sweep

The consultations page lists only documents the Board put out for public comment: 47 as of 19 September 2026, two of them open. It is not the full EDPB output. Documents adopted without consultation live under "Our documents" and include several the site relies on or should cite: Guidelines 05/2020 on consent, Opinion 28/2024 on AI models, Opinion 08/2024 on consent or pay, Opinion 22/2024 on processor chains, the Statement on the AI Act and GDPR interplay, and the 2026-2027 work programme. Those were checked separately and appear elsewhere in this report. The table rates each consulted document for the site: R is directly relevant and either already reflected or raised in this report; B is background worth a citation if a topic is reworked; N is not relevant to any page or tool.

47 documents: 21 directly relevant, 9 background, 17 not relevant.

DOCUMENT	CONSULTATION	REL.	WHERE IT LANDS
Guidelines 02/2026 on anonymisation	8 Jul - 30 Oct 2026, open	R	Report, add-later. Topic 17, AI Risk tool.
Guidelines 03/2026 on web scraping in the context of generative AI	8 Jul - 30 Oct 2026, open	R	Report, add-later. Section 13, AI Risk tool.
Template for personal data breach notification	10 Jun - 5 Aug 2026	R	New. Open item for the incident tool.
Guidelines 1/2026 on processing for scientific research purposes	16 Apr - 25 Jun 2026	B	Topic 11 secondary use, research exception.
Template for Data Protection Impact Assessment	14 Apr - 9 Jun 2026	R	Report, add-later. Open item for the DPIA tool.
Recommendations 1/2026 on Processor Binding Corporate Rules	19 Jan - 2 Mar 2026	B	Transfer safeguard option in the Privacy Assessment.
Recommendations 2/2025 on mandatory user accounts in e-commerce	4 Dec 2025 - 12 Feb 2026	R	New. Topic 15.
Survey: which GDPR compliance templates would help	5 Nov - 3 Dec 2025	N	Consultation on future templates, no content.
Joint Guidelines on the DMA and GDPR interplay	9 Oct - 4 Dec 2025	N	Gatekeeper platforms only.
Guidelines 3/2025 on the DSA and GDPR interplay	12 Sep - 31 Oct 2025	B	Topic 15 for very large platforms only.
Guidelines 02/2025 on blockchain	14 Apr - 9 Jun 2025	N	Final v2.0 adopted 8 Jul 2026. Not a site topic.
Guidelines 01/2025 on pseudonymisation	17 Jan - 14 Mar 2025	R	Report, confirmed and add-later. Topic 17, Privacy Assessment de-identification factor.
Guidelines 02/2024 on Article 48 GDPR	3 Dec 2024 - 27 Jan 2025	R	New. Topic 12, external requests.
Guidelines 1/2024 on legitimate interests, Art 6(1)(f)	9 Oct - 20 Nov 2024	R	LIA tool follows it. Still consultation version.
Guidelines 2/2023 on technical scope of Art 5(3) ePrivacy	16 Nov 2023 - 18 Jan 2024	R	Topic 15, Privacy Assessment tracking factor. Confirmed.

DOCUMENT	CONSULTATION	REL.	WHERE IT LANDS
Guidelines 01/2023 on Article 37 Law Enforcement Directive	27 Sep - 8 Nov 2023	N	Law enforcement transfers.
Recommendations 1/2022 on Controller Binding Corporate Rules	17 Nov 2022 - 10 Jan 2023	B	Transfer safeguard option.
Guidelines 8/2022 on identifying the lead supervisory authority	21 Oct - 2 Dec 2022	B	Topic 14, one-stop-shop.
Guidelines 9/2022 on personal data breach notification	18 Oct - 29 Nov 2022	R	Incident tool, topic 16. Confirmed.
Guidelines 07/2022 on certification as a tool for transfers	30 Jun - 30 Sep 2022	N	
Guidelines 04/2022 on calculation of administrative fines	16 May - 27 Jun 2022	B	Topic 14 context.
Guidelines 05/2022 on facial recognition in law enforcement	16 May - 27 Jun 2022	N	Law enforcement only.
Guidelines 3/2022 on dark patterns in social media (final: deceptive design patterns 02/2023)	21 Mar - 2 May 2022	R	New. Topics 10 and 15.
Guidelines 01/2022 on the right of access	28 Jan - 11 Mar 2022	R	Topic 8. Confirmed.
Guidelines 05/2021 on Article 3 and Chapter V interplay	19 Nov 2021 - 31 Jan 2022	R	Defines a transfer; supports the Privacy Assessment's remote access factor.
Guidelines 04/2021 on codes of conduct as tools for transfers	14 Jul - 1 Oct 2021	N	
Guidelines 03/2021 on Article 65(1) (a)	16 Apr - 28 May 2021	N	Dispute resolution between authorities.
Addendum on certification criteria assessment	14 Apr - 26 May 2021	N	
Guidelines 02/2021 on virtual voice assistants	12 Mar - 23 Apr 2021	B	Topic 4, if voice notetakers are covered.
Guidelines 01/2021 on examples regarding data breach notification	19 Jan - 2 Mar 2021	R	Incident tool cross-check cites it. Confirmed.
Guidelines 10/2020 on restrictions under Article 23	18 Dec 2020 - 12 Feb 2021	N	
Recommendations 01/2020 on supplementary measures for transfers	11 Nov - 21 Dec 2020	R	Privacy Assessment TIA factor. Confirmed.
Guidelines 09/2020 on relevant and reasoned objection	13 Oct - 24 Nov 2020	N	
Guidelines 08/2020 on targeting of social media users	7 Sep - 19 Oct 2020	R	New. Topic 18.
Guidelines 07/2020 on the concepts of controller and processor	7 Sep - 19 Oct 2020	R	Privacy Assessment third-party role factor. Consistent.
Guidelines 06/2020 on PSD2 and GDPR	22 Jul - 16 Sep 2020	N	

DOCUMENT	CONSULTATION	REL.	WHERE IT LANDS
Guidelines 2/2020 on Articles 46(2) (a) and 46(3)(b)	24 Feb - 18 May 2020	N	Public bodies' transfers.
Guidelines 1/2020 on connected vehicles	7 Feb - 4 May 2020	B	Topic 1, fleet GPS example.
Guidelines 5/2019 on the right to be forgotten in search engines	11 Dec 2019 - 5 Feb 2020	B	Topic 8 erasure.
Guidelines 4/2019 on Article 25 data protection by design and by default	20 Nov 2019 - 16 Jan 2020	R	Readiness activities E1 and E2. Consistent.
Guidelines 3/2019 on video devices	12 Jul - 9 Sep 2019	R	Topic 1. Confirmed.
Guidelines 2/2019 on Article 6(1) (b), contract	12 Apr - 24 May 2019	R	Topic 10, consent versus contract. Consistent.
Guidelines 1/2019 on codes of conduct and monitoring bodies	19 Feb - 2 Apr 2019	N	
Guidelines 1/2018 on certification, Annex 2	15 Feb - 29 Mar 2019	N	
Guidelines 4/2018 on accreditation of certification bodies, Annex 1	14 Dec 2018 - 1 Feb 2019	N	
Guidelines 3/2018 on territorial scope, Article 3	23 Nov 2018 - 18 Jan 2019	R	Section 1 of the AI Act page draws the same extraterritorial pattern; Privacy Assessment countries step. Consistent.
Guidelines 1/2018 on certification criteria	30 May - 12 Jul 2018	N	

EDPB documents: all 532

The EDPB documents listing (edpb.europa.eu/our-work-tools/our-documents_en) held 532 items on 19 September 2026. Every one was collected, page by page, and rated for the site with the same three grades as the consultations sweep: R, directly relevant to a page or tool; B, background worth a citation if that topic is reworked; N, not relevant. The rating rules: everything the site cites or should cite is R; procedural, internal and institutional documents are N by type; the 243 routine Article 64 opinions on binding corporate rules, accreditation, certification, national DPIA lists, codes of conduct and standard clauses are N by pattern; adequacy opinions are B as a class because the resulting decisions feed the Privacy Assessment's transfer safeguards list; everything else was read by title and rated by hand. The complete inventory with every title, type, date, rating, note and URL is in the companion file [edpb-documents-inventory-2026-09-19.csv](#), filterable in a spreadsheet [83].

What the full sweep added beyond the consultations sweep: the Cookie Banner Taskforce report (topic 15), the ChatGPT Taskforce report (topic 13), Statement 1/2025 on age assurance (topic 18), Recommendations 02/2021 on storing card data (topic 15), the Article 30(5) position paper (readiness Article 30 activity), the Support Pool of Experts one-stop-shop case digests on legitimate interest, access, objection and erasure, and security and breach notification (LIA tool, topic 8, incident tool), the EDPB website auditing tool (topic 15 and the cookie scanner), Statement 3/2024 on data protection authorities' role under the AI Act (AI Act section 8), the EDPB-EDPS Joint Opinion 1/2026 on the AI Omnibus, and the WP29 guidelines the EDPB endorsed and still lists: WP250 on breach notification, WP251 on automated decision-making, WP260 on transparency, WP243 on data protection officers and WP248 on DPIAs. None of them contradicts anything on the site; they are citations the pages could carry.

Counts by publication type

PUBLICATION TYPE	TOTAL	R	B	N
Opinion of the Board (Art. 64)	257	4	1	252
Reports, statements, and letters	53	2	4	47
Guideline	46	21	8	17
Support Pool of Experts	22	6	7	9
Other guidance	21	2	8	11
Legislative opinion	20	2	5	13
Statement	16	1	4	11
Internal document	14	0	0	14
EDPB Binding Decisions	12	0	7	5
Procedure	12	0	0	12
Adequacy	10	0	10	0
Legal study by external providers	9	0	4	5
Rules of procedure	9	0	0	9
Other policy document	8	0	1	7
Internal procedural guidance	7	0	0	7

PUBLICATION TYPE	TOTAL	R	B	N
Recommendation	7	2	2	3
Coordinated Enforcement Framework	5	3	0	2
Task force report	3	2	1	0
Memorandum of Understanding	1	0	0	1
All	532	45	62	425

The 45 directly relevant documents and where each lands

DOCUMENT	TYPE	DATE	WHERE IT LANDS
One-Stop-Shop case digest on right to object and right to erasure	Support Pool of Experts	26 May 2026	Topic 8; LIA objection factor
One-Stop-Shop case digest on the legal basis of "legitimate interest"	Support Pool of Experts	26 March 2026	LIA tool
Coordinated Enforcement Action, implementation of the right to erasure by controllers	Coordinated Enforcement Framework	18 February 2026	Topic 8
EDPB Work Programme 2026-2027	Reports, statements, and letters	12 February 2026	Report: upcoming guidelines to watch
EDPB-EDPS Joint opinion 2/2026 on the Proposal for a Regulation as regards the simplification of the digital legislative framework (Digital Omnibus)	Legislative opinion	11 February 2026	GDPR Digital Omnibus: report add-later item
EU-U.S. Data Privacy Framework F.A.Q. for European businesses - version 2.0	Other guidance	23 January 2026	Privacy Assessment DPF factor
EDPB-EDPS Joint opinion 1/2026 on the Proposal for a Regulation as regards the simplification of the implementation of harmonised rules on artificial intelligence (Digital Omnibus on AI)	Legislative opinion	21 January 2026	AI Omnibus: AI Act sections 7, 8
Guidelines 02/2024 on Article 48 GDPR	Guideline	05 June 2025	Topic 12: third-country authority orders are not a transfer basis on their own
AI Privacy Risks & Mitigations Large Language Models (LLMs)	Support Pool of Experts	10 April 2025	Topic 13; AI Risk tool; AI Act section 10
Statement 1/2025 on Age Assurance	Statement	12 February 2025	Topic 18 marketing to children
Coordinated Enforcement Action, implementation of the right of access by controllers	Coordinated Enforcement Framework	20 January 2025	Topic 8
One-Stop-Shop case digest on right of access	Support Pool of Experts	16 January 2025	Topic 8
Opinion 28/2024 on certain data protection aspects related to the processing of personal data in the context of AI models	Opinion	18 December 2024	Topic 13; AI Act sections 6, 13; AI Risk tool

DOCUMENT	TYPE	DATE	WHERE IT LANDS
Guidelines 2/2023 on Technical Scope of Art. 5(3) of ePrivacy Directive	Guideline	16 October 2024	Topic 15; Privacy Assessment tracking factor
Opinion 22/2024 on certain obligations following from the reliance on processor(s) and sub-processor(s)	Opinion	09 October 2024	Privacy Assessment third parties; TPSA
Statement 3/2024 on data protection authorities' role in the Artificial Intelligence Act framework	Reports, statements, and letters	16 July 2024	AI Act section 8 governance
Opinion 11/2024 on the use of facial recognition to streamline airport passengers' flow (compatibility with Articles 5(1)(e) and(f), 25 and 32 GDPR)	Opinion	24 May 2024	Topic 9 biometrics
Report of the work undertaken by the ChatGPT Taskforce	Task force report	24 May 2024	Topic 13; AI Act section 13; AI Risk tool
Opinion 08/2024 on Valid Consent in the Context of Consent or Pay Models Implemented by Large Online Platforms	Opinion	17 April 2024	Topics 10 and 15
EDPB website auditing tool	Support Pool of Experts	29 January 2024	Topic 15; cookie scanner comparison
One-Stop-Shop case digest on Security of Processing and Data Breach Notification	Support Pool of Experts	18 January 2024	Incident tool; topic 16
Coordinated Enforcement Action, Designation and Position of Data Protection Officers	Coordinated Enforcement Framework	17 January 2024	Readiness governance activities (Arts 37 to 39); WP243
Guidelines 01/2022 on data subject rights - Right of access	Guideline	17 April 2023	Topic 8
Guidelines 9/2022 on personal data breach notification under GDPR	Guideline	04 April 2023	Incident tool; topic 16
Guidelines 03/2022 on deceptive design patterns in social media platform interfaces: how to recognise and avoid them	Guideline	24 February 2023	Topics 10 and 15
Guidelines 05/2021 on the Interplay between the application of Article 3 and the provisions on international transfers as per Chapter V of the GDPR	Guideline	24 February 2023	Privacy Assessment: remote access is a transfer
Report of the work undertaken by the Cookie Banner Taskforce	Task force report	18 January 2023	Topic 15 cookie banners
Guidelines 01/2021 on Examples regarding Personal Data Breach Notification	Guideline	03 January 2022	Incident tool cross-check
Guidelines 07/2020 on the concepts of controller and processor in the GDPR	Guideline	07 July 2021	Privacy Assessment third-party roles; TPSA intake

DOCUMENT	TYPE	DATE	WHERE IT LANDS
Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of personal data	Recommendation	18 June 2021	Privacy Assessment TIA factor
Recommendations 02/2021 on the legal basis for the storage of credit card data for the sole purpose of facilitating further online transactions	Recommendation	19 May 2021	Topic 15 e-commerce forms
Guidelines 8/2020 on the targeting of social media users	Guideline	13 April 2021	Topic 18 profiling
Guidelines 4/2019 on Article 25 Data Protection by Design and by Default	Guideline	20 October 2020	Readiness activities E1, E2
Guidelines 05/2020 on consent under Regulation 2016/679	Guideline	04 May 2020	Topic 10; Privacy Assessment lawful basis; readiness E3, E4
Guidelines 3/2019 on processing of personal data through video devices	Guideline	30 January 2020	Topic 1
Guidelines 3/2018 on the territorial scope of the GDPR (Article 3) - version adopted after public consultation	Guideline	12 November 2019	Privacy Assessment countries step; AI Act section 1 parallel
Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) GDPR in the context of the provision of online services to data subjects	Guideline	16 October 2019	Topic 10 consent versus contract
Guidelines on Personal data breach notification under Regulation 2016/679, WP250 rev.01	Guideline	25 May 2018	Incident tool; topic 16
Transparency	Guideline	25 May 2018	Topic 15 notices; readiness T activities; Privacy Assessment notice factor
Data Protection Officer	Guideline	25 May 2018	Readiness governance activities (Arts 37 to 39); WP243
Guidelines 2/2018 on derogations of Article 49 under Regulation 2016/679	Guideline	25 May 2018	Privacy Assessment transfer safeguards list
Data Protection impact assessments High risk processing	Guideline	25 May 2018	Privacy Assessment DPIA trigger logic (WP248)
Automated decision-making and profiling	Guideline	25 May 2018	Topic 13; Privacy Assessment Art 22 factor (WP251)
Position Paper on the derogations from the obligation to maintain records of processing activities pursuant to Article 30(5) GDPR	Other guidance	19 April 2018	Readiness Article 30 activity; GDPR Omnibus note

DOCUMENT	TYPE	DATE	WHERE IT LANDS
Article 29 Working Party - Guidelines on transparency under Regulation 2016/679	Guideline	11 April 2018	Topic 15 notices; readiness T activities; Privacy Assessment notice factor

The 62 background documents

- Report on stakeholder event on processing of personal data to target or deliver political advertisements (2026): Topic 18
- EDPB-EDPS Joint Opinion 4/2026 on the Proposal for a Cybersecurity Act 2 and the Proposal on amendments to the NIS 2 Directive (2026): Topic 16 NIS2 incident windows
- Data brokers market study (2026): Topic 18 broker data
- Report on stakeholder event on anonymisation and pseudonymisation of 12 December 2025 (2026): Topic 17
- EDPB Report on the public consultation on helpful templates for organisations to facilitate their GDPR compliance (2026): Templates to come
- EU-US Data Privacy Framework FAQ for European individuals - version 2.0 (2026): Transfers
- Opinion 28/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by Brazil (2025): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Opinion 26/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by the United Kingdom (2025): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Opinion 27/2025 regarding the European Commission Draft Implementing Decision pursuant to Directive (EU) 2016/680 on the adequate protection of personal data by the United Kingdom (2025): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- EDPB-EDPS Joint Opinion 01/2025 on the Proposal for a Regulation on simplification measures for SMEs and SMCs, in particular the record-keeping obligation under Art. 30(5) GDPR (2025): Art 30 threshold history
- Fundamentals of Secure AI Systems with Personal Data (2025): TPSA AI/ML supplement
- Law & Compliance in AI Security & Data Protection (2025): AI Risk tool
- Opinion 07/2025 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data by the European Patent Organisation (2025): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Opinion 06/2025 regarding the extension of the European Commission Implementing Decisions under the GDPR and the LED on the adequate protection of personal data in the United Kingdom (2025): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Study on the secondary use of personal data in the context of scientific research (2025): Topic 11
- AI: Complex Algorithms and effective Data Protection Supervision (2025): Topic 13
- Position paper on Interplay between data protection and competition law (2025): Privacy Assessment competitor-sharing factor
- EU-US Data Privacy Framework FAQ for European individuals (2024): Transfers
- EU-US Data Privacy Framework FAQ for European businesses (2024): Superseded by version 2.0
- AI Auditing (2024): AI Act sections 9, 10
- AI Risks: Optical Character Recognition and Named Entity Recognition (2024): Topic 13
- Data Protection Officer training (2024): Readiness governance
- Information Note on the Data Privacy Framework redress mechanism for national security purposes (2024): Transfers
- Urgent Binding Decision 01/2023 requested by the Norwegian SA for the ordering of final measures regarding Meta Platforms Ireland Ltd (Art. 66(2) GDPR) (2023): Topic 18: behavioural advertising ban
- Binding Decision 2/2023 on the dispute submitted by the Irish SA regarding TikTok Technology Limited (Art. 65 GDPR) (2023): Topic 18: children's data, TikTok
- Information note on data transfers under the GDPR to the United States after the adoption of the adequacy decision on 10 July 2023 (2023): Transfers
- Recommendations 1/2022 on the Application for Approval and on the elements and principles to be found in Controller Binding Corporate Rules (Art. 47 GDPR) (2023): Transfer safeguard option
- Guidelines 04/2022 on the calculation of administrative fines under the GDPR (2023): Topic 14 context
- Report of the work undertaken by the supervisory authorities within the 101 Taskforce (2023): Transfers, analytics tools
- Guidelines 8/2022 on identifying a controller or processor's lead supervisory authority (2023): Topic 14, one-stop-shop

- Binding Decision 1/2023 on the dispute submitted by the Irish SA on data transfers by Meta Platforms Ireland Limited for its Facebook service (Art. 65 GDPR) (2023): Transfers: Meta EUR 1.2bn
- Legal study on government access to data in third countries - Brazil (2023): TIA reference
- Legal study on government access to data in third countries - Mexico and Turkey (2023): TIA reference
- Opinion 5/2023 on the European Commission Draft Implementing Decision on the adequate protection of personal data under the EU-US Data Privacy Framework (2023): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Binding Decision 5/2022 on the dispute submitted by the Irish SA regarding WhatsApp Ireland Limited (Art. 65 GDPR) (2022): Topic 15: transparency, WhatsApp
- Binding Decision 3/2022 on the dispute submitted by the Irish SA on Meta Platforms Ireland Limited and its Facebook service (Art. 65 GDPR) (2022): Topics 10 and 18: contract is not a basis for behavioural advertising
- Binding Decision 4/2022 on the dispute submitted by the Irish SA on Meta Platforms Ireland Limited and its Instagram service (Art. 65 GDPR) (2022): Topics 10 and 18: same, Instagram
- Statement 01/2022 on the announcement of an agreement in principle on a new Trans-Atlantic Data Privacy Framework (2022): DPF history
- Legal study on government access to data in third countries - China, India, Russia (2021): TIA reference
- Opinion 32/2021 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data in the Republic of Korea (2021): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Binding decision 1/2021 on the dispute arisen on the draft decision of the Irish Supervisory Authority regarding WhatsApp Ireland under Article 65(1)(a) GDPR (2021): Topic 15: transparency, WhatsApp
- Guidelines 02/2021 on virtual voice assistants (2021): Topic 4 if voice notetakers are covered
- EDPB-EDPS Joint Opinion 5/2021 on the proposal for a Regulation of the European Parliament and of the Council laying down harmonised rules on artificial intelligence (Artificial Intelligence Act) (2021): AI Act history
- Statement 04/2021 on international agreements including transfers (2021): Topic 12
- Opinion 14/2021 regarding the European Commission Draft Implementing Decision pursuant to Regulation (EU) 2016/679 on the adequate protection of personal data in the United Kingdom (2021): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Opinion 15/2021 regarding the European Commission Draft Implementing Decision pursuant to Directive (EU) 2016/680 on the adequate protection of personal data in the United Kingdom (2021): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Statement 03/2021 on the ePrivacy Regulation (2021): Topic 15 history
- Guidelines 01/2020 on processing personal data in the context of connected vehicles and mobility related applications (2021): Topic 1 fleet GPS example
- EDPB-EDPS Joint Opinion 1/2021 on standard contractual clauses between controllers and processors (2021): Art 28 DPAs
- EDPB-EDPS Joint Opinion 2/2021 on standard contractual clauses for the transfer of personal data to third countries (2021): Transfers
- Information note on data transfers under the GDPR to the United Kingdom after the transition period - update 13/01/2021 (2021): Transfers
- Information note on data transfers under the GDPR to the United Kingdom after the transition period (2020): Transfers
- Recommendations 02/2020 on the European Essential Guarantees for surveillance measures (2020): TIA reference
- Frequently Asked Questions on the judgment of the Court of Justice of the European Union in Case C-311/18 - Data Protection Commissioner v Facebook Ireland Ltd and Maximilian Schrems (2020): Transfers
- Statement on the Court of Justice of the European Union Judgment in Case C-311/18 - Data Protection Commissioner v Facebook Ireland and Maximilian Schrems (2020): Transfers
- Guidelines 5/2019 on the criteria of the Right to be Forgotten in the search engines cases under the GDPR (part 1) (2020): Topic 8 erasure
- Statement 2/2019 on the use of personal data in the course of political campaigns (2019): Topic 18
- Opinion 5/2019 on the interplay between the ePrivacy Directive and the GDPR, in particular regarding the competence, tasks and powers of data protection authorities (2019): Topic 15
- Opinion 28/2018 regarding the European Commission Draft Implementing Decision on the adequate protection of personal data in Japan (2018): Adequacy opinions: the resulting decisions feed the Privacy Assessment transfer safeguards list
- Right to data portability (2018): Topic 8
- Guidelines for identifying a controller or processor's lead supervisory authority, WP244 rev.01 (2018): Topic 14
- Guidelines on the right to data portability under Regulation 2016/679, WP242 rev.01 (2018): Topic 8

Confirmed as correct

Checked and found to match the current source. No action.

CLAIM	SOURCE
Penalty tiers: EUR 35m / 7%, EUR 15m / 3%, EUR 7.5m / 1%, whichever is higher; whichever is lower for SMEs and start-ups (Art 99). GPAI providers: EUR 15m / 3% (Art 101). Unchanged by the Omnibus.	[57]
Territorial scope, the four roles, the provider reclassification of a deployer that modifies or rebrands, and the open-source carve-out limits (Art 2, Art 25).	[57]
The original eight prohibited practices and the Commission guidelines of 4 February 2025; AI system definition guidelines of 6 February 2025.	[58]
GPAI: 10 ²⁵ FLOP presumption; Code of Practice 10 July 2025; guidelines 18 July 2025; training data template 24 July 2025; legacy models compliant by 2 August 2027. Twenty-one full signatories including Amazon, Anthropic, Google, IBM, Microsoft, Mistral and OpenAI; xAI signed only the safety chapter; Meta declined.	[21][22][59]
Provider obligations under Art 16(a) to (l), including accessibility per Directives 2016/2102 and 2019/882; deployer obligations under Art 26(1) to (12), including Art 26(7) on workers' representatives.	[6][60]
Serious incident and deep fake definitions (Art 3).	[57]
Annex III category list and the two routes to high-risk classification.	[5]
Art 12(3) one month plus two, with notice inside the first month; Art 14(3) at the latest within one month; EDPB Guidelines 01/2022 on access v2.0.	[8][61]
WP248 rev.01: nine criteria, two or more usually means a DPIA, employees listed as vulnerable. Endorsed by the EDPB and still operative. Privacy Assessment trigger logic follows it.	[62]
EDPB Guidelines 1/2024 on legitimate interests: three-step test as implemented in the LIA tool. Note the guidelines remain in their October 2024 consultation version; no final adoption was found. KNLTB (C-621/22) on purely commercial interests is reflected.	[63][64]
EDPB Guidelines 9/2022 v2.0 on breach notification and 01/2021 on examples; the incident tool's EDPB cross-check cites the correct document.	[46][65]
ENISA 2013 severity methodology: SE = (DPC x EI) + CB, DPC 1 to 4, EI 0.25 to 1, bands at 2, 3 and 4. The tool's scales match the published values.	[66]
EDPB Recommendations 01/2020 on supplementary measures (transfer impact assessment) and Opinion 22/2024 on processor chains, as reflected in the Privacy Assessment's transfer and third-party factors.	[67][68]
EDPB Guidelines 2/2023 on Art 5(3) ePrivacy v2.0 (October 2024); ePrivacy Regulation withdrawn February 2025. Topic 15's advice on consent before tags is correct.	[69]
Video surveillance Guidelines 3/2019: layered signage, footage normally deleted within days. Topic 1 is consistent.	[70]

CLAIM	SOURCE
New Zealand Biometric Processing Privacy Code: issued 21 July 2025, in force 3 November 2025 for new processing and 3 August 2026 for existing; proportionality assessment, notice, limits on inferring emotion or protected characteristics. Rule 3A on indirect collection took effect 1 May 2026. Topic 9's description holds; there is no separate children's rule, so 'extra care for children's data' should be read as general guidance.	[71][72]
Australia: APP 12 reasonable period, in most cases 30 calendar days; access fees permitted for organisations, not agencies. Spam Act: unsubscribe within five business days.	[44][73]
EU-US DPF valid; two predecessors invalidated by the Court of Justice.	[39]
SCHUFA (C-634/21): a credit score is itself an Art 22 decision where the recipient draws strongly on it. Topic 13 and the Privacy Assessment's Art 22 factor are consistent.	[74]

Tool by tool

What each of the seven models needs, if anything.

Privacy Assessment

- Special-category option label: add "philosophical beliefs" and qualify biometric data as "for uniquely identifying a person".
- The DPF factor could add "appeal pending before the Court of Justice since October 2025".
- Consider a factor for the SRB judgment: where pseudonymised data goes to a recipient who cannot re-identify, the recipient-side analysis changes even though the controller's does not.
- Everything else, including the trigger-count DPIA logic, the labour law factor and the Art 14 one-month factor, is confirmed.

Full DPIA

- No change to the model. A sentence noting compatibility with the EDPB's April 2026 harmonised DPIA template would reassure users who have seen it.

Legitimate Interest Test

- No change to the model. The intro could say the EDPB guidelines it follows are the October 2024 version, still awaiting final adoption. Consider one factor in favour where the interest is expressly recognised in Recital 47 or by the KNLTB judgment (commercial interests).

AI Risk Assessment

Done 19 September 2026: the prohibited-use question now names the two new prohibitions with their 2 December 2026 date, and the "Likely high-risk (Annex III)" factor states the 2 December 2027 application date and the registration timing. Of the bullets below, the first two are done; the governance step carries no literacy wording to change, and a FRIA flag is a new feature rather than a fix, so those two stay open.

- Regulatory screening: add the two new prohibitions (non-consensual intimate imagery, CSAM generation) to the prohibited-use prompt or its help text, applicable from 2 December 2026.
- Factor text for "Likely high-risk (Annex III)" should state the obligations apply from 2 December 2027 and that registration is due before putting into service once the database opens.
- Governance step: the "AI literacy" framing, if any, should use the "take measures to support" wording.
- Consider a FRIA flag when the deployer is a public body or the use is credit scoring or life and health insurance pricing.

Incident & Breach Severity

- No change now. Three items are parked in the open items section for one combined revision: the ENISA malicious intent factor, the source of the AEPD cross-check, and alignment with the EDPB common breach notification template once it is final.
- The 72-hour clock wording is consistent with the EDPB awareness definition. Nothing in the GDPR Omnibus changes it yet.

Third-Party Security Assessment

- No legal change affects the model. The AI/ML supplement's help text could point to the GPAI Code of Practice as the reference a vendor providing a general-purpose model should be able to evidence.

GDPR Readiness

- No change. The Article 30 activity's SME threshold and the Article 33 activities stay as they are until the GDPR Omnibus is adopted, if it is.
- Activity I4 (Article 9 condition) inherits the wording fix above if it lists the categories.

Watch list

Dated events over the next two years that will change something on the site when they land.

WHEN	WHAT
30 September 2026	UK ICO becomes the Information Commission.
30 October 2026	EDPB consultations close on anonymisation (02/2026) and web scraping for generative AI (03/2026).
Late 2026	Third Circuit decision in Thomson Reuters v Ross, the first US appellate ruling on fair use in AI training.
2 December 2026	New AI Act prohibitions (ba) and (bb) apply; Art 50(2) marking grace period ends.
10 December 2026	Australia: ADM transparency in privacy policies commences; Children's Online Privacy Code registration deadline.
Early 2027	European Parliament position on the GDPR Digital Omnibus expected; Council general approach still outstanding.
2 February 2027	AI Act interoperability solutions for AI-generated content marking due.
28 February 2027	Amended deadline for the AI Act standardisation request; first harmonised standards expected in the Official Journal around then.
2 April 2027	GDPR Procedural Regulation (EU) 2025/2518 applies.
2 August 2027	GPAI models placed on the market before 2 August 2025 must comply; national AI sandboxes due.
2 December 2027	Annex III high-risk obligations apply, including FRIA, registration, deployer duties and serious incident reporting.
2 August 2028	Annex I product-embedded high-risk obligations apply.
Pending, no date	CJEU: Latombe appeal on the EU-US DPF; Like Company v Google (C-250/25) judgment. OLG Munich in GEMA v OpenAI. UK Court of Appeal in Getty v Stability. Final EDPB legitimate interests and pseudonymisation guidelines. Final Commission Article 6(5) and Article 73 guidance. EU AI database launch.

How this was checked

Four parallel research passes were run on 19 September 2026 against primary sources where they could be reached (EUR-Lex, Commission digital-strategy pages, the AI Act Service Desk, edpb.europa.eu, curia summaries, legislation.govt.nz, privacy.org.nz, oaic.gov.au, acma.gov.au, gov.uk) and reputable secondary sources where they could not. Two findings with the largest consequences, the entry into force of Regulation (EU) 2026/1744 and the rewording of Article 4, were independently re-checked on Commission pages before this report was written. Where a claim rests on a single secondary source, or could not be verified either way, the text says so. The EDPB website was intermittently unavailable during the check, which is why the final-adoption status of two sets of guidelines is recorded as "not found" rather than "not adopted".

The check covers legal accuracy and currency. It does not re-assess the practical advice, which is judgement rather than fact, except where a legal change undercuts it.

Sources

1. Regulation (EU) 2026/1744 (Digital Omnibus on AI), EUR-Lex: <https://eur-lex.europa.eu/eli/reg/2026/1744/oj/eng>
2. European Commission, AI Omnibus enters into force (27 July 2026): <https://digital-strategy.ec.europa.eu/en/news/ai-omnibus-enters-force>
3. Council of the EU press releases, 7 May 2026 and 29 June 2026: <https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/>
4. European Commission, AI literacy Q&A (updated 27 July 2026): <https://digital-strategy.ec.europa.eu/en/faqs/ai-literacy-questions-answers>
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